

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUPP055353: STEVEN R VAN HOOK vs CHANNEL ISLANDS HOA, et al.

09/14/2026 in Department 42

Demurrer to Second Amended Complaint by Bijan Kohan

Motion: Demurrer by Bijan Kohan (Opposed)

Tentative Ruling: Defendant Bijan Kohan's Demurrer to the Second Amended Complaint is sustained in part and overruled in part.

The demurrer is overruled as to the Second Cause of Action for Premises Liability/Negligence. The Second Amended Complaint adequately alleges a claim of negligence against Defendant Kohan as the owner and landlord of the property, and the claim is not required to be pled with more particularity.

The demurrer to the Third Cause of Action for Intentional Infliction of Emotional Distress (IIED) is sustained with one final opportunity to amend. Retaliatory eviction is not protected conduct, but it alone does not establish extreme and outrageous conduct. The allegations concerning the "extraction" by the Sheriff is not adequately attributed to Defendant Kohan, nor are vague allegations of a "paperwork war" sufficient.

The demurrer to the Fourth Cause of Action for Elder Abuse is overruled. Despite the incorrect citation to Civil Code §3345, Plaintiff has alleged financial abuse of an elder (Wel, & Ins. Code, 15610.30) by alleging that that Defendant Kohan wrongfully retained Plaintiff's university and musical equipment. (SAC at 5:15).

The demurrer as to the Fifth Cause of Action for Battery is sustained with one final opportunity to amend. Battery is an intentional tort (*So v. Shin* (2013) 212 Cal. App.4th 652, 669) and Plaintiff has not alleged that Defendant Kohan engaged in any intentional conduct that resulted in the battery by the alleged agent. Plaintiff's allegation that Defendant Kohan is vicariously liable is a legal conclusion and is not supported by any factual allegations.

Any amended complaint must be filed and served no later than September 28, 2026. Plaintiff is not required to file an amended complaint, and if he opts not to file and serve an amended complaint by the deadline, the third and fifth causes of action will be dismissed as against Defendant Kohan and Plaintiff can proceed on the remaining claims.

Moving party to provide notice.